

25TRCV01628 25TRCV01628

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Case Number: 25TRCV01628 Hearing Date: July 14, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,
July 14, 2026

Department M Calendar No.

PROCEEDINGS

Miguel Robles Huerta v. Jesus Mathew
Hernandez, et al.

25TRCV01628

1. Jesus Mathew Hernandez, et al.'s Motion to Set Aside
Entry of Default and Any Default Judgment

T'ENTATIVE RULING

Jesus Mathew Hernandez, et al.'s Motion
to Set Aside Entry of Default and Any Default Judgment is denied without
prejudice.

Background

Plaintiff filed the Complaint on May 20, 2025.

Plaintiff alleges the following facts. Plaintiff was involved in a motor

vehicle collision with Defendant Jesus Mathew Hernandez. Defendant Hernandez was working for Defendant SCJ GRP, Inc. dba Paptor Wireline Service who negligently supervised and retained Defendant Hernandez. Defendants' defaults were entered on August 5, 2025. Defendants' Answer was filed on August 12, 2025. However, this was after the defaults had already been entered. Default judgment has yet to be entered.

Motion to Set Aside Default

CCP § 473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Code Civ. Proc., § 473(c)(1) states:

"Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no

greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.”

CCP § 473.5(a) states, in relevant part: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

CCP § 473.5(b) states: “A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” The phrase “actual notice” means “genuine knowledge of the party litigant” and does not include constructive or imputed notice to the client. *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.

“After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable. . . . One ground for equitable relief is extrinsic mistake—a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. Extrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended[.] When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances. [W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted. . . . To set aside a judgment based

upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last[], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.”

Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981–82 (internal citations and quotations omitted; emphasis in original).

CCP § 473(d) empowers the Court to set aside any judgment that is void as a matter of law, e.g., lack of subject matter jurisdiction; lack of personal jurisdiction; lack of proper service of the summons and complaint; or the judgment violated due process rights. See

Dhawan v. Biring (2015) 241 Cal.App.4th 963, 973-74; See also *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; See also *Heidary v. Yadollahi* (2002) 99

Cal.App.4th 857, 862-64. “It is well

settled that a judgment or order which is void on its face, and which requires only an inspection of the judgment roll or record to show its invalidity, may be set aside on motion, at any time after its entry, by the court which rendered the judgment or made the order.”

Hiroko Kawakita Hayashi v. Lorenz (1954) 42 Cal.2d 848, 851.

“Code of Civil Procedure section 473, subdivision (d) (hereafter section 473(d)), provides in relevant part that a court “may ... on motion of either party after notice to the other party, set aside any void judgment or order.”

Under this provision, a party may move to vacate a judgment on the ground of improper service of process.” *California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, 212.

“Mistake is not a ground for relief under section 473, subdivision (b), when the court finds that the ‘mistake’ is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law.

Further, the term surprise, as used in section 473, refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. Finally, as for inadvertence or neglect, to warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. It is the duty of every

party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs. The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded." *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206 (internal citations and quotations omitted).

Defendants move to set aside the default and any default judgment pursuant to CCP § 473(b). Defendants move on the following grounds. "Defendants filed an answer in August 2025, which was accepted by this Court. Defendants received a conformed copy. The parties have been involved in active litigation, including propounding and answering written discovery. Accordingly, the failure to file a timely responsive pleading was due to mistake, inadvertence, and excusable neglect as more fully set forth below." (Notice of Motion, p. 2, lines 2-6).

Defendants' defaults were entered on August 5, 2025. The motion was filed on April 28, 2026, more than six months after the entry of default. The six month limit for discretionary relief under CCP § 473(b) runs from the date of entry of default. *Rutan v. Summit Sports, Inc.* (1985) 173 Cal.App.3d. 965, 970. Thus, the motion is not timely filed and the motion for relief under CCP 473(b) must be denied.

The Court further notes that Defendants submitted no facts to show that the entries of default occurred through the mistake, inadvertence, surprise, or excusable neglect of Defendants, or through the mistake, inadvertence, surprise, or neglect of Defendants' counsel. Defendants' counsel's declaration contains no facts and simply states that an Answer was filed on August 12, 2025. However, as noted above, the filing of the Answer was ineffectual because the defaults had already been entered on August 5, 2025. Defendants also fail to provide any facts showing diligence in attempting to move to set aside the defaults. Defendants' counsel notes that they first received this file in July 2025. As noted above, the defaults were entered on August 5, 2025. Yet, the instant motion was not filed until April 28, 2026 approximately eight

to nine months after Defendants' counsel purportedly became aware of the action.

With the Reply, Defendants now attempt to invoke the equitable power of the Court to set aside the default. However, this was not one of the grounds set forth in the motion itself and the Court declines to comment on this theory until a noticed motion is filed raising this, in the notice of motion, as one of the grounds to set aside the entries of default.

Therefore, Defendants' Motion to Set Aside Entry of Default and Any Default Judgment is denied without prejudice. The Court notes that the file does not currently reflect that the purported Answer filed on August 12, 2025 is ineffective. The Court strikes the Answer filed on August 12, 2025, on its own motion.

Plaintiff is ordered to give notice of this ruling.